

In the Supreme Court of Bangladesh
High Court Division
(Criminal Appellate Jurisdiction)

Criminal Appeal No.7743 of 2023

In the matter of:

An appeal under Section 30 of the
Special Powers Act, 1974.

-And-

In the matter of:

Md. Mizanur Rahman @ Mizan
..... Accused-appellant

-Versus-

The State

..... Respondent

Mr. Liton Ranjan Das, Advocate

..... For the accused-appellant.

Mr. Sujit Chatterjee, D.A.G.with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

..... For the State

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

The 31th January, 2024

This is an appeal under Section 30 of the
Special Powers Act, 1974 for bail.

Md. Liton Ranjan Das, learned Advocate
for the accused-appellant prays for his bail
on the ground of long custody since
19.08.2022.

Mr. Sujit Chatterjee, learned Deputy
Attorney General for the state raises
objection against granting of bail to the
appellants.

It turns out from the record that in this case under Section 19(f) of the Arms Act, 1878 the petitioner has made a confession under Section 164 of the Code of Criminal Procedure.

On consideration of above materials on record we hold that the ends of justice will be met if instead of granting bail to the accused-appellant at this point of time a direction is issued upon the trial Court for expeditious disposal of the case or in default consider his petition for bail.

Accordingly, we are directing the learned Judge, Special Tribunal No.01, Chattagram to conclude the trial of the case within 6(six) months from the date of receipt of this order or in default consider the petition for bail of the accused-appellant, if any, sympathetically and in accordance with law.

With above direction this appeal is disposed of.

Let a copy of this order be transmitted to the Court concerned at once.

Md. Masudur Rahman
Bench Officer